SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUWT023824: JOSE GALVAN vs S&P GLOBAL, et al.
07/23/2026 in Department 21
Motion to Bifurcate at Trial

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court's tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendants S&P Global and Market Scan Information Systems, Inc.'s Motion to Bifurcate Punitive Damages at Trial (*Opposed*)

Tentative Ruling:

Defendants S&P Global and Market Scan Information Systems, Inc.'s Motion to Bifurcate Punitive Damages at Trial is GRANTED in part and DENIED in part.

Civ. Code § 3295(d) provides that, upon application of a defendant, the Court "shall" preclude evidence of the defendant's profits or financial condition until the trier of fact has awarded actual damages and found the defendant guilty of malice, oppression, or fraud under Civ. Code § 3294. The statute further requires that any subsequent evidence of profits or financial condition be presented to the same trier of fact.

Accordingly, the punitive-damages proceedings shall be bifurcated. In the first phase, the jury shall determine liability, compensatory damages, whether any Defendant acted with malice, oppression, or fraud, and any required corporate predicate under Civ. Code § 3294(b), including managing-agent status, authorization, or ratification. Evidence of Defendants' net worth, overall financial condition, or profits offered for purposes of determining the amount of punitive damages shall not be admitted during that phase. If the jury makes the requisite findings, the same jury shall hear the second phase concerning the amount of punitive damages and the financial-condition evidence relevant to that determination. (Civ. Code § 3295(d); *Torres v. Automobile Club of Southern California* (1997) 15 Cal.4th 771, 777-778.)

The motion is DENIED, however, to the extent Defendants seek a blanket prohibition against any reference to financial or profitability evidence during the first phase. Although evidence offered merely to establish Defendants' wealth, "deep pockets," or ability to pay punitive damages is inadmissible during the first phase, financial evidence is not categorically excluded where it has independent relevance to liability. (*Notrica v. State Compensation Ins. Fund* (1999) 70 Cal.App.4th 911, 939.)

Plaintiff contends that evidence concerning the economic significance or profitability of the allegedly improper data practices may bear on retaliatory motive. Plaintiff has not identified any specific financial or profitability evidence with sufficient particularity to permit an advance evidentiary ruling. Rather, the admissibility of particular financial or profitability evidence offered for a purpose independent of determining punitive damages shall be addressed at trial based on relevance, foundation, Evid. Code § 352, and any appropriate limiting instruction.

The motion is also DENIED to the extent Defendants seek to prohibit Plaintiff from requesting a specific amount of punitive damages at any stage of trial. Civ. Code § 3295(e) provides that "[n]o claim for exemplary damages shall state an amount or amounts." Plaintiff's operative complaint complies with that requirement. The authorities cited by Defendants do not establish that Civ. Code § 3295(e) categorically prohibits counsel, once the matter properly proceeds to the punitive-damages phase, from suggesting a specific punitive award during argument. (*See Torres*, supra, 15 Cal.4th at p. 777; *Wiley v. Rhodes* (1990) 223 Cal.App.3d 1470, 1473.) This ruling is without prejudice to the Court's authority to regulate argument at trial and to address any improper, inflammatory, or unsupported argument at that time.

Accordingly, the motion is GRANTED in part to require bifurcation consistent with Civ. Code § 3295(d), and otherwise DENIED as set forth above.

Moving party to give notice.